

Archival Source Packet

Jurisdiction	Sunnyvale, CA
County	Santa Clara County
Official Code / Document Title	Sunnyvale Municipal Code, Title 19 - Zoning, Chapter 19.42 - Operating Standards (incl. Sec. 19.42.030 Noise or Sound Level)
Chapter / Section(s) Included	Chapter 19.42, Sections 19.42.010-19.42.070
Issuing Authority	City of Sunnyvale (codified via General Code / eCode360, the city's official code portal)
Canonical Official URL(s)	https://ecode360.com/42730931
Access Date	2026-07-25
Effective / Amended Date	Not explicitly displayed on source

Archival cover sheet — not part of the official ordinance text.

§ 19.42.010

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§ 19.42.010

Operation of home occupations.

Home occupations may be conducted in any zoning district with a business license, provided the director of community development has determined that the proposed use shall comply with the following restrictions:

(a)

The home occupation will not change the residential character or appearance of the dwelling unit or mobile home;

(b)

The home occupation shall be restricted to the dwelling area and shall not be conducted in the yard, garage or any accessory structure except detached habitable spaces;

(c)

No internal or external alterations to the structure are made which are nonresidential in nature;

(d)

No more than twenty percent of the floor area within the dwelling unit or four hundred square feet, whichever is less, shall be devoted to the business (including storage described in subsection

(h))

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(e)

No persons other than residents of the dwelling shall work or report to work on the premises;

(f)

Signage shall comply with the provisions of Section

19.44.040

of this code pertaining to residential name plates;

(g)

All advertising shall clearly state "by appointment only" if the residential address is used;

(h)

No more than fifty cubic feet of storage of inventory or products shall be devoted to business purposes in any part of the dwelling;

(i)

No merchandise, product, or tangible thing shall be sold on the premises;

(j)

The business shall not generate vehicular traffic which will interfere with residential traffic circulation or shall not cause more than three vehicles including vehicles used by customers, vendors or delivery services to visit the premises per day;

(k)

The business shall not generate external noise, odor, glare, vibration or electrical interference detectable to the normal sensory perception by adjacent neighbors;

(l)

No explosive, toxic, combustible or flammable materials in excess of what would be allowed incidental to normal residential use shall be stored or used on the premises;

(m)

The use or storage of any supplies, electrical or mechanical equipment, shall be limited to that which is compatible with the residential use of the dwelling unit or mobile home;

(n)

The total number of home occupations at any one address is not limited, except the cumulative impact of all such businesses shall not exceed the limits set forth in this section for a single home occupation.

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Prior zoning code § 19.24.005

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Ord. 2623-99

§ 1

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Ord. 2907-09

§ 8

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Ord. 3000-13

§ 1

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§ 19.42.020

Operations upon land—Nuisance prohibited.

(a)

Operations upon land in any zoning district shall be conducted in such a manner as to promote and protect the public health, safety, convenience and general welfare of the inhabitants of the city. The owner or occupant of land used for any agricultural, commercial, industrial or residential purpose shall not suffer or permit any activity, operation or installation on such land which is obnoxious or offensive or creates a nuisance to the occupants or commercial visitors of adjacent buildings or premises by reason of the emission of dust, fumes, glare, heat, liquids, noise, odor, smoke, steam, vibrations or similar disturbances.

(b)

Recyclable or refuse materials which have been permitted to accumulate for more than twenty-four hours at any recycling collection or processing facility and which are not properly contained within containers, bins or enclosures intended as receptacles for such materials shall constitute a nuisance, as described in Section

9.26.030

. Such materials shall be deemed abandoned, and the city shall have the right to enter any business premises for the purpose of abating or removing any such materials which have remained continuously on the premises for more than twenty-four hours.

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Prior zoning code § 19.24.010

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Ord. 2623-99

§ 1

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§ 19.42.030

Noise or sound level.

(a)

Residential Noise Limits.

(1)

Operational noise shall not exceed 50 dBA during nighttime or 60 dBA during daytime hours at any point on the property line of the adjacent single-family or duplex uses.

(2)

Operational noise shall not exceed 55 dBA during nighttime or 65 dBA during daytime hours on the primary useable open space of multi-family uses.

(3)

Operational noise shall not exceed 60 dBA during nighttime or 70 dBA during daytime hours on the primary useable open space of residential uses located along major transportation corridors (freeways, expressways, arterials, and rail lines) or mixed-use residential properties.

(b)

Nonresidential Noise Limits.

(1)

Operational noise shall not exceed 60 dBA during nighttime or 70 dBA during daytime hours at any point on the property line of the adjacent nonresidential use.

(2)

Operational noise generated at industrial, manufacturing, or similar uses shall not exceed 75 dBA during daytime hours at the adjacent property line.

(c)

Special Exceptions from Noise Limits.

(1)

Powered Equipment. Powered equipment used on a temporary basis during daytime hours is exempt from the operational noise limits. When used on a continuous basis or during nighttime hours, they should comply with operational noise limits. When used adjacent to residential uses, operation of powered equipment is not allowed during nighttime hours.

(2)

Construction. Construction activity regulated by Title

16

of this code shall not be governed by this section.

(3)

Deliveries. Noise from deliveries shall not be considered operational noise. It is unlawful for any person to make or allow to be made a nighttime delivery to a commercial or industrial establishment when the loading/unloading area of the establishment is adjacent to a residential use. Businesses legally operating at a specific location as of February 1, 1995, are exempt from this requirement.

(4)

Leaf Blower. A "leaf blower" is a small, combustion engine-powered or electric device used for property or landscape maintenance that can be hand-held or carried by the operator and which operates by propelling air under pressure through a cylindrical tube. It is unlawful for any person to operate a leaf blower on private property in or adjacent to a residential use except between the hours of eight a.m. and eight p.m. Effective January 1, 2000, all leaf blowers operated in or adjacent to a residential area shall operate at or below a noise level of 65 dBA at a distance of 50 feet, as determined by a test conducted by the American National Standards Institute or an equivalent. The dBA rating shall be prominently displayed on the leaf blower.

(5)

Warning Sounds. Warning sounds necessary for the protection of public health, safety, and welfare including, but not limited to: civil defense and fire sirens; commercial and residential burglar or fire alarms; and emergency response warning noises are exempt from the operational noise limits.

(6)

Emergency Utility and Street Repairs. Noise from emergency utility and street repairs are exempt from this chapter.

(7)

Street Sweeping and Refuse Collection Services. Noise from street sweeping and refuse collection services (garbage, recycling, and organic materials) are exempt from this chapter.

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Prior zoning code § 19.24.020(b)—(d)

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Ord. 2623-99

§ 1

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Ord. 3219-23

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8/8/2023

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§ 19.42.040

Fuel permitted.

In order to reduce air pollution, only natural gas or petroleum products or electrical energy shall be used as a fuel for the conduct of any use. All activities, operations or equipment installations which produce or may produce air pollutants shall comply with the regulations adopted by the Bay Area Air Pollution Control District.

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Prior zon-ing code § 19.24.030

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Ord. 2623-99

§ 1

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§ 19.42.050

Lights—Restrictions.

Lights, spotlights, floodlights, reflectors, and other means of illumination shall be shielded or equipped with special lenses in such a manner as to prevent any glare or direct illumination on any public street or other property. When adjacent to residential zoning districts, non-residential light standards located within the required setback areas as defined in Section

19.34.030

shall be a maximum of eight feet high.

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Prior zoning code § 19.24.040

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Ord. 2623-99

§ 1

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Ord. 2714-02

§ 4

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§ 19.42.060

Ground vibration regulated.

Every activity or operation shall be conducted in such a manner that ground vibration generated or produced on the premises is not perceptible at any point on the property line of the premises without the use of a special measuring instrument.

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Prior zoning code § 19.24.050

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Ord. 2623-99

§ 1

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§ 19.42.070

Fireplace or woodburning appliance.

No new fireplace or new woodburning appliance shall be utilized except in accordance with Chapter 8.14.

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Ord. 2672-01

§ 2

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